3852

Executive Order

POWELL NATIONAL FOREST
UTAH

Under authority of the Act of Congress approved June 4, 1897 (30 Stat., 11, 34-36), it is hereby ordered that the boundaries of the Powell National Forest be, and they are hereby, modified by excluding therefrom the hereinafter described area in the State of Utah:

In T. 33 S., R. 4 E., S. L. M., Secs. 25, 26, 35, and 36;

In T. 33 S., R. 5 E., unsurveyed Secs. 29, 30, and 32, and surveyed Sec. 31.

It is also ordered that the portion of such area lying within the following described boundaries be, and the same is hereby, temporarily withdrawn, subject to the conditions, provisions and limitations of the Act of Congress approved June 25, 1910 (36 Stat., 847), as amended by the Act of August 24, 1912 (37 Stat., 497), for use by the United States Forest Service as a ranger station in the administration of such national forest:

> Beginning at the quarter-section corner common to Secs. 25 and 26, T. 33 S., R. 4 E., S. L. M., thence west 3 chains; thence south 15 chains; thence east 3 chains to intersection with section line between said sections; thence continuing east 2 chains; thence north 15 chains; thence west 2 chains to the quarter-section corner common to the sections, the place of beginning, containing approximately 7.5 acres.

It is further ordered that the following described tract in the area excluded from the Forest by this order be, and the same is hereby, reserved for townsite purposes under Section 2380, to be hereafter disposed of under Sections 2382 to 2386, inclusive, of the Revised Statutes of the United States, subject to such ranger station withdrawal:

In T. 33 S., R. 4 E., S. L. M., SW¼ of Lot 1, Lots 5, 6, and 7, E½ NW¼ SW¼ NW¼ and SE¼ NW¼ SW¼ of Sec. 25, and SE¼ NE¼ NE¼, E½ SW¼ NE¼ NE¼, E½ SE¼ NE¼, E½ W½ SE¼ NE¼, E½ NE¼ SE¼ and E½ W½ NE¼ SE¼ of Sec. 26, containing 130.51 acres more or less.

And it is hereby ordered, pursuant to Public Resolution No. 29 of February 14, 1920, as amended by Public Resolutions Nos. 36 and 79, approved January 21, and December 28, 1922, respectively, that the unwithdrawn public lands in the excluded area, subject to valid rights, shall be opened, where surveyed, only to entry under the homestead and desert land laws by qualified ex-service men of the war with Germany, under the terms and conditions of said resolutions and the regulations issued thereunder, for a period of ninety-one days, beginning with the sixty-third day from and after the date of this order, and thereafter any of such land remaining unentered will be subject to appropriation under any public land law applicable thereto by the general public.

Subsequent to the date hereof and prior to the date of restoration to general disposition, as herein provided, no rights may be acquired to the excluded lands by settlement in advance of entry, or otherwise except strictly in accordance herewith.

WARREN G HARDING

THE WHITE HOUSE,
May 21, 1923.

[No 3852.]

GOVERNMENT PRINTING OFFICE